

Ravi Karan Singh Patel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 August 2023 · 2023:AHC:171646-DB · Writ - C No. 27634 of 2023 · **Writ disposed; apply and process connection claim as per law**

HEADNOTE

A tenant's writ for a shop connection was disposed without any opinion on merits. If he applies and completes the formalities within ten days, the authority must process and finalise the claim as per law within one further week. The licensee had pointed to clause 4.4(a)(i) and Annexure 4.2 as that route.

FACTUAL SUMMARY

The petitioner, a tenant of a shop on Maheshwari Devi Road, Banda, sought an electricity connection and a decision on his representation of 6 December 2022. He said the landlord had disconnected the shop and that his business was suffering. Relying on Narayan Prasad, he contended that an occupier-tenant cannot be refused supply merely for want of the landlord's consent. The licensee answered that the Electricity Act, 2003 and the Supply Code, 2005, including Annexure 4.2 and clause 4.4(a)(i), already provide that route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

new connection application by tenant-occupier

HOLDING

Where a tenant seeks a writ for a new shop connection and the licensee points to the application mechanism in clause 4.4(a)(i) and Annexure 4.2, the Court, without expressing any opinion on the merits, disposes the petition by consent: if the occupier applies and completes the prescribed formalities within ten days, the authority shall process and finalise the claim in accordance with law within one further week. ¶ 4-5

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents

The Bench did not direct that the connection be granted. It left the tenant to move an application and complete the formalities the licensee had identified under clause 4.4(a)(i) and Annexure 4.2, and directed the authority to process and finalise that claim as per law within the stated time. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A TENANT-OCCUPIER IS ENTITLED TO A NEW CONNECTION THAT CANNOT BE REFUSED SOLELY FOR WANT OF THE LANDLORD'S CONSENT

The Court declined to express any opinion on the merits and left the claim to be processed under the Code. ¶ 5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Narayan Prasad v. State of U.P. & Ors.</i> 2021 (1) ARC 654			petitioner	Referred

